

1 ENGROSSED SENATE
2 BILL NO. 2049

By: Frix of the Senate

3 and

4 Gise of the House

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6 An Act relating to transportation; requiring the
7 Department of Transportation to submit certain
8 notification to the Transportation Commission;
9 requiring Department to receive certain approval
10 before taking certain action; providing for
11 codification; and providing an effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1105 of Title 69, unless there
15 is created a duplication in numbering, reads as follows:

16 The Department of Transportation shall, prior to making a claim
17 against a surety company for financial loss due to the
18 nonperformance of a contractor engaged in contract with the
19 Department, notify the Transportation Commission of its intent to
20 make such claim. The Transportation Commission shall review the
21 information submitted by the Department and approve or disapprove
22 the making of such claim. The Department shall only proceed with
23 making such claim if the Transportation Commission approves of such.

24 SECTION 2. This act shall become effective November 1, 2026.

1 Passed the Senate the 26th day of March, 2026.

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4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives